

Section 39.

THE FOURTH SCHEDULE.

ENACTMENT AND MEASURE REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
35 Vict., c. 8	The Deans and Canons Resignation Act, 1872.	The whole, except in respect of persons who have attained the age of fifty-five years before the appointed day.
11 & 12 Geo. V., No. 2.	The Ecclesiastical Commissioners Measure, 1921.	The whole Measure.

No. 7.

A MEASURE passed by the National Assembly
of the Church of England

To provide for Bishops' Pensions.

[15th December 1926.]

Scope of
Measure.

1. This Measure shall apply to the bishop of every diocesan bishopric in England, whether created before or after the passing of this Measure, except the bishopric of Sodor and Man.

Bishops to
receive pen-
sions from
Ecclesias-
tical Com-
missioners.
32 & 33 Vict.
c. 111.

2. Every bishop to whom this Measure applies who—

- (a) with or without proceedings under the Bishops' Resignation Act, 1869, resigns his bishopric on or after attaining the age of seventy years, or
- (b) under the provisions of the Bishops' Resignation Act, 1869, resigns his bishopric before attaining the age of seventy years

shall be entitled to receive from the Ecclesiastical Commissioners as from the date upon which his resignation of his bishopric becomes effectual, and for so long as he shall live, an annual sum by way of pension of an amount

determined in accordance with the next following section of this Measure, and such annual sum shall be paid by the Ecclesiastical Commissioners out of their Common Fund in four equal quarterly payments on the First February, First May, First August and First November in each year, subject to apportionment in the case of resignation or death occurring on any other day than one of the said quarterly days of payment.

3. The amount of the annual sum so payable by way of pension shall be, in the case of the Archbishop of Canterbury or the Archbishop of York, fifteen hundred pounds; in the case of the Bishop of London, the Bishop of Durham, or the Bishop of Winchester, on any resignation of the Bishopric of Winchester before the alienation of any portion of the income of that bishopric to the endowment fund of the Bishopric of Portsmouth or the Bishopric of Guildford, one thousand pounds; and in the case of the Bishop of Winchester on any resignation of that bishopric after the alienation of any portion of its income to the endowment fund of the Bishopric of Portsmouth or the Bishopric of Guildford, or of any bishop other than those hereinbefore mentioned, eight hundred pounds.

Amount of
pensions.

4. Every bishop shall pay to the Ecclesiastical Commissioners, for the benefit of their Common Fund, an annual sum of the amount of three pounds ten shillings in respect of every one hundred pounds (and so in proportion in respect of any less amount than one hundred pounds) of a portion determined as follows of the income of his bishopric, that is to say, in the case of the archbishoprics of Canterbury and York, and the bishoprics of London, Durham and Winchester the portion shall be one-third of the income of the bishopric, and in the case of all other bishoprics the portion shall be one-half of the income of the bishopric, or if that income be less than three thousand pounds, then the portion shall be the amount by which the income of the bishopric exceeds fifteen hundred pounds. The annual sum shall be payable in two equal half-yearly payments on the First January and First July in every year in respect of the year ending on the following thirty-first December.

Annual
contribu-
tions from
bishops.

In the case of any bishopric subject to a charge for a pension to a retired bishop created under the Bishops'

Resignation Act, 1869, before the coming into operation of this Measure, the annual sum payable in respect of that bishopric shall be reduced by three pounds ten shillings in respect of every one hundred pounds of the charge, and so in proportion in respect of any less amount, so long as the charge continues.

Time for
commence-
ment of the
Measure.

5. The provisions of this Measure shall come into operation upon the later of the two dates hereinafter mentioned, (a) that is to say :

(1) the date of the publication in the "London Gazette" of an instrument under the seal of the Ecclesiastical Commissioners certifying that they are satisfied that the additional burdens imposed or likely to be imposed upon their Common Fund under the provisions of this Measure may be undertaken by the Commissioners without any probability of the completion of their scheme for the augmentation of benefices as set out in Part III. of the Commissioners' current Regulations relating to certain grants out of their Common Fund being endangered, and without interfering with their ability to provide the full sum (if so much be required) of five hundred thousand pounds, the provision of which is authorised by section forty-four of the Ecclesiastical Dilapidations Measure, 1923, and to provide such capital and annual sums as they may be willing to provide for the purpose of a general Pensions Scheme for the clergy to be established by Measure of the Church Assembly; and

(2) the date appointed by the Archbishops under the First Fruits and Tenths Measure, 1926, for the first fruits and tenths and sums in lieu of first fruits and tenths payable by bishops to cease to be payable.

Repeal.

6. The Acts specified in the Schedule to this Measure are hereby repealed to the extent therein set forth, and except as they affect the diocese of Sodor and Man.

Interpreta-
tion.

7. In this Measure :—

The expression "bishop" includes an archbishop.

(a) 20th January, 1927: see "London Gazette," 25th January, 1927, p. 518.

The expression "bishopric" includes an archbishopric.

The expression "income" in relation to a bishopric does not include the annual value of any premises occupied by virtue of the office.

8. This Measure may be cited as the Episcopal Short title. Pensions Measure, 1926.

THE SCHEDULE.

32 & 33 Vict., c. 111.—The Bishops' Resignation Act, 1869, section 2 (from "with the exceptions following" to "archbishop or bishop" at the end of the paragraph numbered (3) in that section).

38 & 39 Vict., c. 34.—The Bishopric of St. Albans Act, 1875, section 14.

No. 8.

A MEASURE passed by the National Assembly
of the Church of England

To consolidate and amend the law relating to the due performance of the Ecclesiastical Duties of Benefices, and to make provision for the Stipends of Curates appointed under the Measure and in certain other cases.

[15th December 1926.]

· · · PART I.

ECCLESIASTICAL DUTIES OF BENEFICES.

1. In any case where the ecclesiastical duties of a benefice are inadequately performed either by reason of the negligence of the incumbent or without negligence on his part, provision may be made under this Part of this Measure for the due performance of such duties.

Provisions for securing due performance of ecclesiastical duties of benefices.

2. For the purposes of this Measure—

(a) the expression "ecclesiastical duties" shall include (but subject to the express provisions of subsection (4) of section three of this

Ecclesiastical duties.